

**IN THE
SUPERIOR COURT OF
THE STATE OF WASHINGTON**

Case Number: **23-2-11352-7**

ZACKARIAH BENNETT

Plaintiff

and

MELVINA MANNING

Defendant

**Motion to Correct Misrepresentation
by Opposing Counsel**

Dear Judge Hawk,

I am writing to bring to the Court's attention material misrepresentations made by opposing counsel in the hearing on 06/28/24. Material inaccuracies presented by opposing counsel, Nancy Gass, necessitate correction to avoid misleading the Court and ensure a fair adjudication of this matter.

1. Misrepresentations:

A. Opposing counsel stated that the review on appeal in cause #22-2-09380-3 was "denied," when, in fact, the appeal was dismissed for mootness.

B. Opposing counsel misrepresented the allegations in this cause as having been previously adjudicated, asking the court to view the two previous judgements as res judica for this cause, yet asking the supreme court to view them as unrelated.¹

C. Opposing counsel aggressively misrepresented this matter as one of retaliation and DV, while obstructing review of the actions involved.

2. Accurate Information:

A. As evidenced by the court order dated 03/11/2024, the appeal was dismissed for mootness² - on motion from Ms. Gass, who Mrs. Manning retained only after failing to get the DVPO renewed, and after the Appellant's brief was filed.

B. The allegations listed against Mrs. Manning in this cause are independent; some of which have additional victims seeking damages, and none of which have been litigated. Two are counterclaims (made in July of 2022) that went unaddressed.

¹ Answer to petition for review 05/22/2024 [Supreme Court 102950-1]

² <https://law.justia.com/cases/washington/court-of-appeals-division-i/2024/84450-4.html>

C. This is a matter fundamentally about truth and child welfare. Mrs. Manning's actions constitute child abuse and coercive control, alienating TB from his father and relatives. Her falsehoods, law violations, manipulations, and defrauding actions against family members have been used to construct an appearance of legality, devoid of transparency and accountability.

3. Explanation of Difference: A dismissal for mootness indicates that the court found no live controversy to resolve, whereas a denial would imply a substantive review and rejection of the appeal's merits.

4. Impact of Misrepresentation: These misrepresentations could mislead the Court regarding the prior proceedings' nature and unfairly prejudice this matter.

5. Pattern of Misrepresentation: The continued misrepresentation of facts, and mischaracterization of events suggests a pattern of dishonesty.

Therefore, I respectfully request that the Court:

- Instruct opposing counsel to correct the record;
- Strike the misrepresented statements from the record; and/or
- Take any other action the Court deems appropriate to ensure accurate representation of the procedural history.

Thank you for your attention to this matter.

I, Zackariah Jeremiah Bennett,

Do certify under penalty of perjury under the laws of the State of Washington that the foregoing is true and correct to the best of my knowledge.

Zackariah Bennett


06/29/2024

At Goldendale, WA

419 words